IN THE NATIONAL COMPANY LAW TRIBUNAL,

NEW DELHI, COURT-III

COMPANY APPLICATION CA. (CAA) – 90(ND)/2022

(Under Section 230-232 and other applicable provisions of the Companies Act, 2013 r/w the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

IN THE MATTER OF SCHEME OF AMALGAMATION

BETWEEN

SHRI VENIMADHAV PORTFOLIO PVT. LTD.

Having its Registered Office at: -

203, 2nd Floor, Devika Tower,

Nehru Place, New Delhi-110019

E-mail: s_venimadhav@yahoo.com

..... Applicant Company No.1/Transferor Company

AND

OVINGTON FINANCE PVT. LTD.

Having its Registered Office at: -

203, 2nd Floor, Devika Tower,

Nehru Place, New Delhi-110019

E-mail: info@ovingtonfinance.com

..... Applicant Company No.2/Transferee Company

AND

THEIR RESPECTIVE CREDITORS AND SHAREHOLDERS

Order Pronounced On: 28.07.2025

CORAM:
SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)

DR. SANJEEV RANJAN, HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant: Ms. Sadhna Anand (CS), Mr. Rahul Khanna, Advs.

For OL : Mr. Kartikeya Asthana, Adv.

ORDER

PER: DR. SANJEEV RANJAN, MEMBER (TECHNICAL)

1. This is a 1st Motion Application jointly filed under Sections 230 and 232 of the Companies Act, 2013 read with the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016, and other applicable provisions, if any, in connection with the proposed Composite Scheme of Amalgamation of Shri Venimadhav Portfolio Pvt. Ltd. and Ovington Finance Pvt. Ltd., to obtain orders to dispense with/convene meetings of Equity Shareholders, Secured Creditors and Un-secured Creditors of the Applicant Companies for considering and approving the aforesaid Scheme of Amalgamation.

2. The Ld. Counsel for the Applicant has given the brief description of the Applicant Companies, which are as follows:

a) The Applicant No. 1/Transferor Company No.1 namely Shri Venimadhav Portfolio Pvt. Ltd, having CIN: U67120DL2005PTC143089 was incorporated on 29.11.2005 under the provisions of the Companies Act, 1956, as a Private Limited Company vide Certificate of Incorporation issued by the Registrar of Companies, NCT Delhi & Haryana, New Delhi.

The registered office of Applicant Company No. 1 is situated at 203, 2nd Floor, Devika Tower, Nehru Place, New Delhi-110019.

The Authorized Share Capital, Issued Share Capital, Subscribed Share Capital and Paid-up Share Capital of the Applicant No.1 Company is Rs. 10,00,000/- divided into 1,00,000 Equity Shares of Rs. 10 each.

b) The Applicant No. 2/Transferee Company namely Ovington Finance Pvt. Ltd. bearing CIN: U65923DL2013PTC261042 was incorporated on 27.11.2013 under the provisions of the Companies Act, 2013, as a Private Limited Company vide Certificate of Incorporation issued by the Registrar of Companies, NCT Delhi & Haryana, New Delhi. The registered office of Applicant Company No. 2/Transferee Company is situated at 203, 2nd Floor, Devika Tower, Nehru Place, New Delhi-110019.

The Authorized Share Capital of the Company is Rs. 7,50,00,000/- divided into 75,00,000 Equity Shares of Rs.10 each.

The present Issued, Subscribed and Paid-up Share Capital of the Company is Rs. 7,17,56,390/- divided into 71,75,639 Equity Shares of Rs. 10/- each.

3. The Affidavits in support of the present application have been sworn by Mr. Bhagwan Das Narang (DIN: 00826573), son of Mr. Gurdit Singh Narang, Director of Applicant No. 1/Transferor Company and Applicant No.2/Transferee Company, who have been duly authorized vide board resolutions dated 08.09.2021 of all the Applicant Companies are filed with the application.

4. The Board of Directors of all the Applicant Companies in their respective meeting held on 08.09.2021 considered and unanimously approved the proposed Scheme of Amalgamation. Copies of the Board Resolutions have been enclosed with the 1st motion joint Application being filed with this Tribunal.

5. The Applicant Companies have filed their Memorandum and Articles of Association inter alia delineating their object clauses as well as the latest audited annual financial report for the year ended 31.03.2021.

6. The Applicant Companies have filed the true copy of the proposed Scheme of Amalgamation, the benefits of which are as follows:

"The Applicant/Transferor Company and Transferee Company belong to the same group of companies and managed and controlled by almost same director and the shares of both the companies are held by almost same share holder as it evident from the composition of directors of Applicant Company as well as list of shareholders. Hence, Transferor Company and Transferee Company are controlled and managed by almost same person constituting the Board of Director of each Applicant Company and Transferee Company.

The Scheme has been proposed to combine and consolidate conveniently and effectively the business synergy owing to interacted operations and reduction in costs. Moreover, the Transferor and Transferee Company are engaged in the same line

of business. It is also evident from the object clause of Memorandum of Association of both the Companies.

The Board of Directors of the Applicant/Transferor Company and the Transferee Company are thus of the view that the merger of entities shall together create a strong entity, in terms of financial, operational & management efficiencies, and shall lead to optimum utilization of resources of Applicant Company taking advantage of synergies of applicant Company. The Companies would thus get the benefits of consolidation through focused management and economies of scale.

The amalgamation of the Transferor Company with the Transferee Company in terms of the Scheme shall result in reduction of overheads and other expenses, elimination of duplication of works, reduction in administrative and procedural works, rationalization and streamlining of management, business and finances and it will enable better and more productive utilization of various resources by pooling the resources of the undertakings of applicant company and will optimize productivity, leading to better and more efficient and economic running, control and management of the combined businesses.

The Transferor and Transferee Companies are managed and controlled by close family members as the Shareholders of the Transferor Company shall receive 10 Share each of the Transferor Company as a consideration of being Shareholder of the Transferor Company.

7. It is submitted that the Transferor and Transferee companies are managed and controlled by close family members as the shareholders and the directors of the Transferor and Transferee Company are closely related. The Transferor and Transferee Companies are engaged in the similar line of business as it also evident from the respective MOA of both the companies. Hence, the object clause would not be affected after amalgamation.

8. The Applicant Company No.1/Transferor Company has 2 Equity Shareholders, no secured creditors and 2 Unsecured Creditors as per the records. All Equity Shareholders, and Unsecured Creditor of Applicant No.1 Company have given consent.

9. The Applicant Company No. 2/Transferee Company has 4 Equity Shareholders, Nil Secured Creditors and Nil Unsecured Creditors as per records. All 4 equity shareholders, have given their consent.

10. There was a statutory liability of the Transferee Company i.e., M/s. Ovington Finance Pvt Ltd (NBFC) was availing Loan of Rs. 200 Lacs and Rs. 150 Lacs vide loan account no. 412106390000094 & 412106390000095 respectively for the purpose of onward lending to small borrowers. Both the term loan accounts were repaid in full and final Settlement and the loan accounts were closed on 09- 02-2023 & 01.06.2024 respectively and apart from said statutory liabilities no more unsecured creditors, who has given advances or entitle to receive from the Transferee Company and thus no unsecured creditor is negligible or Nil. There was one secured creditor of the Transferee Company i .e., Union Bank of India, Nehru Place Branch, New Delhi from which the Transferee Company has taken a secured loan and the said loan has been repaid that the said creditor has issued N.O.C in respect of Closing of loan Account which is filed by the Applicant Company by way of Affidavit dated 22.07.2024.

11. All the shareholders of the Transferor Company and Transferee Company have given their No Objection for dispensing with the holding of the meeting of the shareholders.

12. In the present application a separate disclosure affidavit under section 230(2) of the Companies Act 2013 is also filed to show that no investigation or proceeding under the Companies Act, 2013 or under the erstwhile Companies Act, 1956 is pending neither against the Transferor Company nor Transferee Company involved in the present Scheme of Amalgamation.

13. The Transferee Company is having net worth and is in a position to discharge all its debts and there is no likelihood that the rights of the creditors of the Transferee Company may be affected adversely upon the implementation of the proposed scheme.

14. Having heard the submissions made by Ld. Counsel, and the documents placed on record, we allow the following prayers:

> *"a. Dispense with the requirement of convening meetings of Equity Shareholders and Creditors of the Applicant/Transferor Company and further also to dispense with the requirement of giving individual notices to the equity shareholders, in the interest of justice;*
>
> *b. Dispense with the requirement of convening meetings of Shareholders of the Transferee Company as all the shareholders have given their consent;*
>
> *c. Dispense with the requirement of convening meetings of Creditors of the Transferee Company as the creditors have given their consent and no interest will be effected to these creditors;*
>
> *d. Approve the scheme of amalgamation and allow the Applicant/Transferor Company to file the second motion.*

15. The prayers (a), (b), (c) sought in the present application bearing **CA.CAA-90(ND)/2022** stands **allowed** on the aforesaid term and present application is accordingly **disposed of**.

16. All the aforesaid directions are to be complied with strictly in accordance with the applicable law including forms and formats contained in the Companies (Compromises, Arrangements, Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicant Companies.

17. Let copy of the order be served to all the parties.

-Sd-	**-Sd-**
(DR. SANJEEV RANJAN)	**(BACHU VENKAT BALARAM DAS)**
MEMBER (TECHNICAL)	**MEMBER (JUDICIAL)**

IN THE NATIONAL COMPANY LAW TRIBUNAL

NEW DELHI, COURT-III

IA (Com. Act)/136(ND)/2025

In

COMPANY APPLICATION CA. (CAA) – 90(ND)/2022

IN THE MATTER OF SCHEME OF AMALGAMATION

BETWEEN

SHRI VENIMADHAV PORTFOLIO PVT. LTD.

Having its Registered Office at: -

203, 2nd Floor, Devika Tower,

Nehru Place, New Delhi-110019

E-mail: s_venimadhav@yahoo.com

..... Applicant Company No.1/Transferor Company

AND

OVINGTON FINANCE PVT. LTD.

Having its Registered Office at: -

203, 2nd Floor, Devika Tower,

Nehru Place, New Delhi-110019

E-mail: info@ovingtonfinance.com

..... Applicant Company No.2/Transferee Company

AND

THEIR RESPECTIVE CREDITORS AND SHAREHOLDERS

Order Pronounced On: 28.07.2025

CORAM:
SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)

DR. SANJEEV RANJAN, HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant: Ms. Sadhna Anand (CS), Mr. Rahul Khanna, Advs.

For OL : Mr. Kartikeya Asthana, Adv.

ORDER

PER: DR. SANJEEV RANJAN, MEMBER (TECHNICAL)

1. The present Application has been filed by M/s. Ovington Finance Pvt. Ltd. under Rule 154 r/w Rule 11 of the Company Law Tribunal Rules, 2016 seeking the following prayers: -
    a) "Allow the Applicant to file the rectified document in place of earlier filed document and allow the applicant to place on record the rectified convenience table.
    b) Pass such other orders as may be deemed fit and proper in the interest of justice."

2. The Applicant had earlier filed the affidavit of transferor and Transferee companies with reference to section 230 (2) of the company Act, 2013 in compliance with the order dated 16.12.2024 on dated 06.02.2025 vide e filing no. 0710102042522022 and Miscellaneous No. 0710102042522022/13. Further on direction of this Tribunal Convenience table indicating the Number of shareholders, secured creditor and Unsecured creditor in the Transferor and Transferee Companies had been filed on dated 20.02.2025 vide e filing no. 0710102042522022 and Miscellaneous no. 0710102042522022/14.

3. It has come to the notice of the applicant that certain typographical error/ mistakes inadvertently occurred in the said Convenience Table, which required rectification to ensure accuracy and competence of the record before this Tribunal.

4. The applicant has now prepared the rectified version of the Convenience Table which is Annexed herewith, ensuring that the error have been corrected, and seek permission from this honorable tribunal to place the corrected version on record. The rectification sought does not change the material facts or merits of the case but is only to correct inadvertently typographical error, ensuring clarity and correctness of documents.

5. The Convenience Table Showing number of Shareholders, Secured Creditors and Unsecured Creditors in the transferor and transferee companies:

Particulars	Transferor Company i.e. M/S Shri Venimadhav Portfolio Pvt. Ltd.	Consent Given	Transferee company i.e. M/s Ovington Finance Pvt. Ltd.	Consent Given	Total (Post merger)
No. of Shareholders	(2) i.e. 1. Bhagwan Das Narang 2. Kusum Narang	100%	(4) i.e. Name of Shareholder 1.SidharathNarang 2.Bhagwan Das Narang 3.Narang Capital Management and Advisors Ltd. 4.Kusum Narang	100%	(4) i.e. Name of Shareholder 1.Sidharath Narang 2.Bhagwan Das Narang 3.Narang Capital Management and Advisors Ltd. 4.Kusum Narang
No. of Secured Creditor	NIL	NA	NIL	NA	NA
No. of Unsecured Creditors	(3) i.e. Name of Unsecured Creditors 1.Shri Veni Madhav Equity Advisors Pvt Ltd 2.Bhagwan Das Narang 3.Kusum Narang	100%	NIL	NA	(3) i.e. Name of Unsecured Creditors 1.Shri Veni Madhav Equity Advisors Pvt Ltd 2.Bhagwan Das Narang 3.Kusum Narang

6. The present Application **IA (Com. Act)/136(ND)/2025** filed in **Company Application CA.(CAA) 90(ND)/2022** is **allowed** and the rectified convenience table is taken on record.

-Sd-

(DR. SANJEEV RANJAN)
MEMBER (TECHNICAL)

-Sd-

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)